STANDARD OPERATING PROCEDURE			P-3830	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **08/08/22**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL		RESOURCES		
SUBJECT HIGH-RISK TRAFFIC STOPS		CROSS REFERENCE P-3800 TRAFFIC LAW ENFORCEMENT P-5000 HIGH RISK INCIDENTS		

I. Purpose:

The purpose of this policy is to establish procedures for initiating and completing High-Risk traffic stops.

II. Policy:

The Sarpy County Sheriff's Office recognizes that certain traffic stops cannot be handled using standard procedures due to the potential danger to deputies. When deputies believe a more controlled vehicle stop is required to protect themselves or others; they shall initiate a High-Risk traffic stop and follow the approved procedures.

III. Definitions:

A. CONTACT UNIT/DEPUTY: The first deputy to have contact with a suspect vehicle. The contact deputy provides commands to the vehicle occupants and shall have primary responsibility of the High-Risk traffic stop unless relieved by a superior deputy.

B. COVER UNIT/DEPUTY: The second and subsequent deputies assisting with a High-Risk traffic stop. The cover deputy is generally responsible for covering the suspect vehicle and it occupants and for handcuffing and securing the occupants of the vehicle after the contact deputy has ordered them into position.

IV. Procedure:

A. Initiating a High-Risk Traffic Stop-Deputy Responsibilities:

1. Reasons for Initiating a High-Risk Traffic Stop: Deputies may consider conducting a High-Risk traffic stop under the following conditions:

a) The vehicle to be stopped has been reported stolen.

b) The deputies have reason to believe the occupants are armed.

c) The vehicle was involved in a pursuit.

d) The deputies have reason to believe an occupant in the vehicle has a felony warrant.

e) The deputies have reason to believe the occupant(s) is/are suspect(s) in a felony crime.

f) The deputies have reason to believe a standard traffic stop would endanger their lives or the lives of others.

2. Deviations:

a) The Sarpy County Sheriff's Office recognizes High-Risk Traffic Stops are dynamic, rapidly evolving situations, with an elevated risk to all parties involved. The procedures outlined in this policy are aligned with the current training standards of the Sarpy County Sheriff's Office and Sarpy Douglas Law Enforcement Academy. Environmental variations from policy in vehicle positioning, deputy positioning, and commands issued by deputies do not necessarily constitute a violation of the provisions of this policy.

3. Initiating a High-Risk Traffic Stop-Contact Deputy Responsibilities:

a) **Notification:** The contact unit shall follow the suspect vehicle and notify communications of the following:

(1) The deputy shall advise communications the reason he or she is following the suspect vehicle (e.g. District 515, I am following a signal 5 (stolen) vehicle, District 515, I am following a suspect vehicle from a bank robbery, etc.).
(2) A description of the vehicle including license plate number.
(3) A description of the occupants.
(4) Location of the vehicle and direction of travel.
(5) The deputy shall request additional units.

b) The contact unit should not initiate the High-Risk traffic stop until at least one other unit has joined the contact unit.

c) Once the back-up unit has joined the contact unit, the contact unit shall advise communications that they will be initiating a High-Risk traffic stop. The contact deputy should follow appropriate radio procedures for traffic stops with the addition of the notification that it

is a High-Risk traffic stop (see P-3800 Traffic Law Enforcement). Communications will clear the LE West Talkgroup for emergency traffic only.

d) If possible, the contact officer should choose an appropriate location for the stop. The location should be away from heavy vehicle or pedestrian traffic. If possible, deputies should avoid making High-Risk stops in residential areas or areas where citizens could be endangered.

e) If the contact unit must initiate the High-Risk stop prior to the arrival of a second unit, he or she should position his or her cruiser to provide maximum cover (see diagram below). The contact deputy shall not approach the vehicle, but he or she shall stay behind cover with his or her duty handgun drawn. The contact deputy shall provide commands controlling the movement of the occupants of the suspect vehicle until additional units arrive.

4. Vehicle positioning:

a) The first two (2) cruisers should offset to either side of the suspect vehicle.

b) The first two (2) cruisers should be approximately 20-40 feet behind the suspect vehicle.

c) The first two (2) cruisers should be approximately a car width apart from each other, parked with axles aligned, and the cruisers should be parallel to one another.

d) Additional cruisers should park behind the first two cruisers.

e) All lights should be activated, all cruiser doors should be closed to maximize visibility of the suspect vehicle. Subsequent cruisers should avoid backlighting other deputies.

5. Deputy positioning:

a) The first four (4) arriving deputies should stand at the back corners of initial two cruisers, taking care to “stack pillars” wherever practicable.

b) Additional deputies that arrive on scene should park their vehicles either next to or behind the initial responding units and take up a similar position of cover until needed by units on scene.

B. High-Risk Traffic Stop Two Initiating Deputies Responsibilities:

1. The contact deputy has the primary responsibility of giving commands to the occupants of the suspect vehicle.

2. The initial cover deputy is primarily responsible for any remaining occupants in the vehicle. The cover deputy should advise the contact deputy if occupants are moving or lowering their hands.

3. The suspects should first be issued the following commands:
- **a)** Roll all windows down.
- **b)** Turn off the engine.
- **c)** All occupants show empty hands out the windows or otherwise placed where visible to deputies.

4. Occupants should be ordered out of the vehicle one at a time in a controlled fashion, with only one deputy issuing commands at a time.

5. Each occupant should be ordered to walk toward the deputy with hands visible.

6. Deputies should attempt a visual frisk of the waistband and may ask suspects to raise their shirts and turn to check for concealed weapons.

7. Handcuffing should occur behind cover, behind cruisers, whenever practicable.

8. Suspects should be placed in additional responding cruisers, not the initial two, to avoid crossfire.

9. Repeat the process for each known occupant of the suspect vehicle.

10. A final call should be made for any hidden occupants to make themselves known and surrender to deputies. Commands for hidden occupants to surrender should continue until the vehicle has been cleared.

C. Additional Deputies on Scene Responsibilities:

1. Additional cover units should park behind the initial two patrol units. No units should take a position in front of the suspect vehicle. Additional cover deputies shall take positions of cover and concealment and may arm themselves with semi-automatic carbines, shotguns, or less lethal weapons, as available.

2. When additional back-up units are on scene and the contact deputy has called for the last known occupant to exit, two deputies should notify the contact deputy that they will be clearing the car.

3. A minimum of two (2) deputies should approach the vehicle from the same side and visually clear inside the passenger compartment and any cargo areas in view.

4. If an additional occupant is found, the cover deputies shall retreat and the contact deputy should call for the occupant to exit.

5. If no additional occupants are found in the passenger compartment, any remaining concealed area should be cleared for additional individuals, to include trunks, covered cargo areas, concealed passenger compartments, etc.

D. High-Risk Traffic Stops-Supervisor Responsibilities:

1. The on-duty shift supervisor should respond to all High-Risk traffic stops.

2. If the occupants of the vehicle refuse to exit the vehicle, the shift supervisor may consider the situation a high-risk incident and follow the appropriate procedures (see P-5000 High Risk Incidents).

3. The on-duty shift supervisor should notify the on-duty watch commander or the ADC when a High-Risk traffic stop is conducted.

4. The on-duty shift supervisor may cancel a High-Risk traffic stop if he or she believes the stop does not meet the requirements of a High-Risk stop.

E. High-Risk Traffic Stops-General:

1. Deputies shall immediately notify Communications upon the completion of the High-Risk traffic.

2. Deputies should avoid approaching vehicles meeting High-Risk car stop requirements unless they believe the vehicle to be unoccupied.

3. At least one deputy should cover the vehicle and its occupants at all times; contact and cover deputies should communicate to ensure that the vehicle and all occupants are under constant visual surveillance.

4. If additional deputies are available, through traffic on the roadway on which the High-Risk stop is occurring should be stopped.

F. High-Risk Traffic Stop-Vehicle Position Diagram:
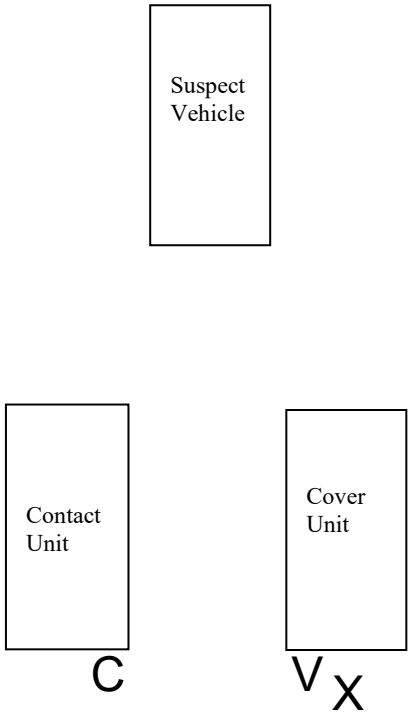
Diagram: **C**: Contact Deputy, **V**: Cover Deputy, **X**: Handcuffing Position